

23STCV24992 23STCV24992

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-15

Motion: MOTION TO VACATE THE COURT'S ORDER ON NOVEMBER 12, 2024; MOTION TO STAY RECEIVER'S ACTION [CRS No. 971223135971]

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Case Number: 23STCV24992 Hearing Date: September 15, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

PINEAPPLE VENTURES, INC., a

California Corporation, and PINEAPPLE CONSOLIDATED, INC., a California Corporation,

Plaintiffs,

vs.

PNPLXPRESS, INC., a California

Corporation, JOSHUA EISENBERG, an individual; JENNIFER-BETH DILLS, an individual; and DOES 1 through 20, inclusive,

Defendants.

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CASE NO: 23STCV24992

[Related to Case Nos. 23STCV25038,
23STUD14526

[TENTATIVE] ORDER RE: MOTION
TO VACATE THE COURT'S ORDER ON NOVEMBER 12, 2024; MOTION TO STAY RECEIVER'S
ACTION [CRS No. 971223135971]

Dept. 731

September 15, 2026

8:30 a.m.

Matter No. 13

Moving Party: Defendant, Joshua Eisenberg

Opposing Party: Receiver, Theodore Lanes

Notice: OK

1. Court

Order

Now before the Court is Defendant

Joshua Eisenberg's motion to (1) set aside and vacate this Court's November 12, 2024, Order, enforcing a settlement in this action, which led to judgment and then amended judgment, (2) deny a request for compensation by the receiver ordered by the Court in this action, (3) deny or continue any financial audit, and (4) defer any ruling on compensation pending resolution of request for relief (1).

After review, the Court finds
insufficient grounds for relief.

As for request for relief (1),
Defendant brings his motion pursuant to Code of Civil Procedure section 473, subdivision (b), which on the face of the statute is subject to a strict six-month period after which this Court has no authority to rule on such a motion. (See Code Civ. Proc., § 473, subd. (b). This determination undermines the need for a determination on request for relief (4). Here, Defendant's motion is untimely by several multiples of six months.

As for request for relief (2) and
(3)—relating to compensation billed by the receiver—such relief is improperly noticed, failing to provide a basis for relief either therein or in the points and authorities, particularly within the context of a motion to set aside and vacate.

Defendant Joshua Eisenberg's motion
to set aside and vacate is accordingly DENIED.

The order is without prejudice as

to challenges to fees and costs billed by the receiver.

Defendant Joshua Eisenberg is
ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 15, 2026 _____

MARK C. KIM

Judge of the
Superior Court